



## **STANDING ORDER NO. Lic. & Leg./14/2022**

### **PREVENTION OF FORCED BEGGING IN DELHI**

1. The Bombay Prevention of Begging Act of 1959 (Bombay I Act No. X of 1959) was extended to this Union Territory of Delhi by the Delhi Administration vide their Notification No. F.1 (185) (/60/DSW (i) dated 10.2.61.
2. In the year 2015, the Hon'ble High Court of Delhi, de-criminalized begging in Delhi vide its Judgment dated 8<sup>th</sup> August, 2018 in W.P (C) No. 10498/2009, titled as "Harsh Mander & Anr. Vs UOI & Ors., & W.P (C) No. 1630/2015, titled as "Karnika Sawhney Vs Union of India & Ors" and struck down sections 4, 5, 6, 7, 8, 9, 10, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 24, 25, 26, 27, 28 and 29 of the Bombay Prevention of Begging Act, 1959, as extended to Delhi.
3. However, police officers may initiate legal action on the acts, which do not directly or indirectly criminalize begging, or related to the "offence" of begging. Other provisions which deal with the nature of offences under the Act, appeals, the power to frame rules and removal of difficulties, would be maintained. The relevant provisions are as under:-
  - (i) **Under Section 11**, whoever employs or causes, any person to solicit or receive alms, or whoever having the custody, charge or care of a child, connives at or encourages the employment or the causing a child to solicit or receive alms or whoever uses another person as an exhibit, shall be punished with imprisonment for a term which may extend to three years but which shall not be less than one year.
  - (ii) **Under Section 30**, any police officer or other person, authorized in this behalf, may also seize any animal the sore, wound, injury, deformity or disease of which was exposed or exhibited by such person with the object of obtaining or extorting

alms. Such an animal may be removed to an infirmary appointed under section 35 of the Prevention of Cruelty to Animals Act, 1960.

(iii) **Under section 31**, the offence u/s 11 of this Act shall be cognizable and non-bailable.

4. SHOs should, therefore, make adequate and necessary arrangements to prevent forced begging in their respective areas and explain the provisions of the Act to their staff and the police parties going out on patrol.

5. **SUPERSESSION CLAUSE**

This Standing Order supersedes the previous Standing Order No.165/2006 issued vide No.39652-751/AC-V/C&T /PHQ dated 11.08.2006.

6. **DISCLAIMER**

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.

  
23.2.2022  
(RAKESH ASTHANA)  
COMMISSIONER OF POLICE:  
DELHI.

No. 6701-6850 /Record Branch/PHQ dated Delhi, the 23-02-2022.

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
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